

**IN THE HIGH COURT OF UNITED REPUBLIC OF TANZANIA
TEMEKE HIGH COURT SUB-REGISTRY
(ONE STOP JUDICIAL CENTER)
AT TEMEKE**

MISC. CIVIL APPLICATION NO 27392 OF 2025

(Originating from Probate Cause No. 8913 of 2025)

**IN THE MATTER OF THE ESTATE OF THE LATE METHOD ANATOLI KASHONDA
AND**

**IN THE MATTER OF AN APPLICATION FOR REVOCATION OF LETTER OF
ADMINISTRATION GRANTED TO PHILBERT MUHIGI RWEYEMAMU AND
JULIUS RWEYEMAMU KALOKOLA IN RESPECT TO THE ESTATE OF THE LATE
METHOD ANATOLI KASHONDA**

BETWEEN

ANATOLI MOSES KASHONDA APPLICANT

VS

PHILBERT MUHIGI KASHONDA 1ST RESPONDENT

JULIUS RWEYEMAMU KALOKOLA 2ND RESPONDENT

RULING

Date of last order: 29/12/2025

Date of Ruling: 31/12/2025

S. D. MWAIPOPO J

This is an application for revocation of the letters of administration of the estate of the late Method Anatoli Kashonda granted to Philbert Muhigi Kashonda and Julius Rweyemamu Kalokora, the Respondents herein.

The Application has been filed by Anatoli Moses Kashonda under sections

3 and 49(1) (b) and (c) of the Probate and Administration of Estates Act (Cap 352 R.E 2019) and Rule 29 (1) of the Probate Rules. It is also

supported by the Affidavit of the Applicant filed under a Certificate of Urgency and a supplementary Affidavit of Elfredina Balilemwa.

The Respondents also opposed the Application by filing a Joint Counter Affidavit.

A brief background of this matter is that Method Anatoli Kashonda passed away intestate on 9 November 2024 at Muhimbili National Hospital, Ilala, Dar es Salaam, Tanzania. During his lifetime, the deceased had one child known by the name of Moses Mushumbusi Kashonda, who predeceased him, leaving behind two grandsons, one of whom is the Applicant in the present Application. At the time of his death, the deceased owned a fixed place of abode situated at Plot No. 293, Mbezi Beach, Kinondoni Municipality, Dar es Salaam, Tanzania. The total estimated value of the gross estate is TZS 1,500,000,000.

Following the death of the deceased, a family meeting was convened on 15 November 2024, during which the Respondents were nominated to administer the estate. Thereafter, the Respondents filed a petition before the High Court of Tanzania at Dar es Salaam in Probate and Administration Cause No. 8913 of 2025, seeking the grant of Letters of Administration. In the said Application, the Respondents listed the Applicant as one of the

beneficiaries, including his young sister Annamaria Kashonda who was named as the grand daughter and Catherine Kashonda identified as a daughter of the deceased person.

Upon publication of the citation, no caveat was lodged. Consequently, on 27 June 2025, I allowed the Application by appointing the Respondents as administrators of the estate and thereby granted them with letters of administration of the estate of late Method Anatoli Kashonda, subject to the condition that they file an Inventory of the estate on or before 30 July 2025. The Inventory was duly filed.

The present Application arises from the Applicant's challenge to the said grant. The Applicant seeks revocation of the Letters of Administration on the ground that the Respondents willfully obtained the grant through false representations of material facts. It is alleged that the Respondents misled this Honourable Court by presenting Catherine Kashonda as a daughter of the deceased, while knowing that such representation was false, thereby occasioning a misrepresentation before the Court.

At the hearing of the present Application, the Applicant enjoyed legal services from Mr. Nictagon Itege, learned counsel, while the Respondents

were represented by Mr. Yiga Joseph. With the leave of the court, the Application was heard by way of written submissions.

The Applicant submitted further that, the Respondents deliberately misrepresented material facts in their Petition for Letters of Administration by listing Catherine Kashonda as a daughter and lawful heir of the late Method Anatoli Kashonda, despite knowing that she has no biological or legal relationship with the deceased.

The Applicant submitted that, mere recognition or identification of an individual as a daughter by family members does not, in law, confer heirship or a right to inherit from the estate of a deceased person.

The Applicant submitted that, the grant of Letters of Administration was therefore obtained through fraud and misrepresentation, contrary to the requirements of section 49(1)(b) of the Probate and Administration of Estates Act.

The Applicant submitted that courts have consistently revoked grants obtained through concealment or misrepresentation of material facts. Reliance was placed on *Dharafi Waziri Nora Kirenje v Amina S. Mtekatela* (Miscellaneous Application No. 19 of 2023, High Court of Tanzania at

Songea), where the court revoked Letters of Administration upon finding fraudulent concealment of material facts.

The Applicant further submitted that in *Annath Athuman Maseko v Lilian Kirundwa Rajabu* (Civil Revision No. 1 of 2021, High Court of Tanzania, Temeke Sub-Registry), the court held that; failure to disclose material facts relating to heirs renders probate proceedings defective in substance and justifies revocation under section 49(1) of the Act.

The Applicant also submitted that in the unreported matter of the Estate of the Late Selemani Omary Kipwimbwi (Miscellaneous Civil Application No. 783 of 2016, High Court of Tanzania, Dar es Salaam Registry), the Court annulled a grant obtained through untrue allegations of facts essential in law to justify the grant.

The Applicant submitted that the Respondents' reliance on Exhibit PJK-3, a document allegedly read during the funeral of the late Maria Kashonda, is misplaced, as the document bears no signature or official stamp, its authorship is unknown, and it lacks verification, rendering it incapable of establishing any legal relationship between Catherine Kashonda and the deceased.

The Applicant further submitted that fraud, as defined in *Black's Law Dictionary*, Tenth Edition, entails knowing misrepresentation or concealment of a material fact intended to induce reliance to another's detriment, and that the Respondents' conduct squarely falls within this definition.

The Applicant submitted that due to the Respondents' misrepresentation and concealment of material facts, the Court was misled into granting Letters of Administration on the erroneous belief that all lawful heirs had been disclosed.

The Applicant also submitted that in the case of **Asia Amour Mahomed v Pauline Abdi Hoza and Another** (Miscellaneous Civil Application No. 19874 of 2024, High Court of Tanzania, Temeke Sub-Registry), the Court revoked Letters of Administration on the basis of false representation of identity alone, which was sufficient to invoke section 49(1)(a), (b), and (c) of the Act.

In conclusion, the Applicant submitted that the Respondents failed to comply with the mandatory requirements of section 49 of the Probate and Administration of Estates Act and therefore prayed that the Letters of

Administration granted to the Respondents be revoked and fresh Letters of Administration be issued to Anatoli Moses Kashonda.

Submitting in rebuttal, the Respondents stated that, the Applicant's case is founded on the allegation that they fraudulently concealed a material fact by identifying Catherine Kashonda as a daughter and beneficiary of the late Method Anatoli Kashonda, despite her allegedly not being his biological daughter.

The Respondents submitted that the Applicant's allegations are based on hearsay information allegedly obtained from Elfredina Balilemwa, whose affidavit merely confirms that Catherine Kashonda was raised by the deceased and his wife from a very young age and was consistently treated and referred to as their daughter.

The Respondents submitted that Elfredina Balilemwa lacks credibility and legal standing to determine heirship, as she is an in-law to the Kashonda family and not a blood relative of the deceased.

The Respondents submitted that allegations of fraud and misrepresentation must be strictly proved, in accordance with section 110 of the Evidence Act, Cap. 6, and that the Applicant failed to discharge this burden.

The Respondents submitted that no fraud or concealment occurred, as Catherine Kashonda was named, educated, married off, and publicly recognized as a daughter of the deceased and has always borne the Kashonda name.

The Respondents further submitted that the Applicant attended the family meeting held on 15 November 2024, signed Form No. 56 consenting to their appointment, acknowledged Catherine Kashonda as a beneficiary, and raised no objection during the probate proceedings, and is therefore estopped from denying facts previously admitted.

The Respondents submitted that the Court of Appeal in ***Peter Agustino Mrema v Doris Augustin Mkandala (2024) TZCA 102*** held that; the Court's mandate at the appointment stage is limited to assessing the suitability of administrators and not determining the ultimate heirs or beneficiaries of the estate.

In conclusion, the Respondents submitted that, the Applicant failed to strictly prove fraud, misrepresentation, or concealment as required by law, and accordingly prayed that the application for revocation be dismissed with costs.

After considering the Affidavits on record, the written submissions by learned counsel for both parties, and the applicable law, it is now time for this court to determine the present Application.

The central issue for determination is whether the grant of Letters of Administration was obtained fraudulently, by concealment or misrepresentation of material facts, so as to warrant revocation under section 49 of the Probate and Administration of the Estates Act.

The Applicant contends that the Respondents knowingly misrepresented Catherine Kashonda as a daughter of the deceased, thereby misleading the Court. On the other hand, the Respondents maintain that Catherine Kashonda was raised by the deceased from childhood, educated and publicly acknowledged as his daughter, bore his name, and was treated as such throughout his lifetime. They further argue that fraud must be strictly proved and that the Applicant has failed to discharge this burden.

The applicable law on revocation is clear. Section 49(1) of the Probate and Administration of the Estates Act empowers the court to revoke or annul a grant where it is satisfied that the grant was obtained fraudulently by making a false suggestion or by concealment of material facts, or where the proceedings were defective in substance. It is also a settled principle of

law, as provided under section 117 of the Evidence Act, Cap. 6 as revised, that the burden of proof lies on the party who alleges a particular fact. This is an ancient rule founded on consideration of good sense and should not be departed from without strong reason and that fraud must be strictly proved and cannot be inferred lightly. See the following cases: **Paulina Samson Ndawanya v. Theresia Thomas Madaha, CAT-Civil Appeal No. 45 of 2017 (unreported)** and **In the matter of the estate of the late Ally Kleist Sykes and in the matter of application by Abraham Ally Sykes for revocation of the probate granted to Zainab Sykes, Abdoul Sykes and Alhaj Araf Sykes and in the matter of an Application by Abraham Ally Sykes for the grant of letters of administration of the estate of the late Ally Kleist Sykes to replace Zainab Sykes, Abdoul Ally Sykes and Alhaj Araf Sykes Miscellaneous Civil Application no 85/2020 HCT Dar es salaam,**

Upon careful consideration of the affidavits and submissions on record, this Court finds that the Applicant has failed to discharge that burden. The evidence relied upon by the Applicant, even if taken at its highest, merely suggests that Catherine Kashonda may not be a biological child of the deceased. It does not however, establish that the Respondents knowingly made a false statement or concealed a material fact from the Court.

In the circumstances, the Court finds that the Respondents acted in good faith and in accordance with the family's understanding of Catherine's status. While the Applicant challenges her lack of biological connection, this court finds that the evidence presented in the Counter Affidavit, indicating combination of public recognition, bearing of the deceased's name, and prior acceptance by the Applicant, precludes any finding of fraud. These narrations are also reiterated and confirmed in the Supplementary Affidavit of Balilemwa as argued by the Respondents. Even in the absence of Exhibit PJK-3, the Counter Affidavit stands as a separate piece of evidence, along with family consensus on the matter as narrated hereinabove.

These factors, taken together with the Applicant's estoppel, demonstrate that there was no material misrepresentation before the Court. In the case of **Meck Daudi Kasane versus Amos Goi Mang'ombe PC. Civil Appeal cause no. 22889/2024 HCT Temeke OSJC** the court regarded two daughters who lived with the deceased person for a long time as her own children based on the evidence presented in court and reserved the question for determining the rightful heirs in the appropriate stage. The court held as follows:

I have gone through the records of the Primary Court specifically the proceedings and noted that Grace Rodson

Kawa and Caroline Kawa were the children of the deceased's sister from the same mother and father and had been raised by the deceased person and lived with her for a long time as her children since she did not have children, until she met her death. This fact was testified in court by the Respondent herein and also by Grace Rodson Kawa and Caroline Kawa. Further, the deceased person and the Respondent regarded them as their children and there is ample evidence that they had lived with them for a long time in their lives and even cared for the deceased before she died as demonstrated in the Primary Court proceedings. Furthermore, they were also listed as heirs in the Family meetings. Suffices to state at this stage that they regarded them as children of the deceased person as testified in the primary court.whether they qualify to inherit or not, this is not relevant at this stage and it is upon the Administrator of estate, at opportune time or right time to do a determination of the rightful heirs of the estate and or identify all the beneficiaries of the estate in accordance with the law. The main issue for now is whether he is fit to be appointed as the administrator of the estate, See also the case of: Monica Nyamakare Jigamba vs Mugeta Bwire Bhako as an administrator of Musiba Jigamba Civil App no 19910/2019. I therefore agree with the Respondent's submissions that this ground also has no merit.

The record shows that the identity of Catherine Kashonda as a daughter was openly disclosed throughout the entire process leading to the grant and sanctioned or endorsed not only by the Applicant but also his sister Annamaria. The clan meeting at which the Respondents were proposed was attended by the Applicant. The Petition filed before this court expressly listed Catherine Kashonda as a daughter and beneficiary and no one challenged it. The Applicant and other beneficiaries jointly signed Form No. 56 consenting to the appointment of the administrators and acknowledging Catherine as a beneficiary named in the petition. Further, statutory citations and publications were duly made, and the Applicant appeared before this court without raising any objection or entering a caveat thereof. These facts demonstrate transparency rather than concealment on the part of the Administrators. It would be contradictory to allow the Applicant, having expressly consented to the appointment and the disclosed list of beneficiaries, to later deny those admitted facts without cogent and compelling evidence. The doctrine of estoppel therefore operates against the Applicant.

The authorities cited by the Applicant, including *Annath Athuman Maseko*, *Asia Amour Mohamed*, and *Dharafi Waziri Nora*, are distinguishable from the present case. In those cases, the courts found clear misstatements or

omissions apparent on the face of the record or supported by concrete evidence. In the present matter, no such falsehood or concealment has been proved. Assuming that there was any concealment then it was done with the aid and knowledge of the Applicant given his consensus in everything that was done at the appointment stage. In this regard, the maxim that; "he who seeks equity must come with clean hands" applies squarely against the Applicant. Thus, the Respondents' conduct does not meet the legal threshold required to invoke section 49(1)(b) and (c) of the Act.

Furthermore, as correctly argued by the Respondents, at the appointment stage, the court is focused on assessing the suitability of the Administrators rather than the question as to who is the correct heir or not. See the case of **Peter Augustin Mrema vs Doris Augustine Mkandala** (supra). The issue as to whether or not someone is a correct heir or not are matters to be decided in the next stage, if need be. Indeed, no objection was raised by the Applicant at the appointment stage to fault the suitability of the Respondents as far as inclusion of Catherine Kashonda is concerned. That issue cannot be raised at this stage without cogent proof. **In the matter of the estate of the late Ally Kleist Sykes and in the matter of application by Abraham Ally Sykes for revocation of the probate**

granted to Zainab Sykes, Abdoul Sykes and Alhaj Araf Sykes and in the matter of an Application by Abraham Ally Sykes for the grant of letters of administration of the estate of the late Ally Kleist Sykes to replace Zainab Sykes, Abdoul Ally Sykes and Alhaj Araf Sykes Miscellaneous Civil Application no 85/2020 HCT Dar es salaam, Hon Ismail J as he then was, in dismissing an Application for revocation, stated as follows:

It should be noted, here and now, that revocation of a grant of probate is such a weighty and agonizing decision that cannot hinge on sketchy or flimsy grounds which are lacking in any concrete proof of the executors' wrong doing or ill motive that borders on breach of fiduciary duties. It is a lot more complicated when the allegation of wrong doing borders on a criminal undertaking which, as Dr. Murungu argued, has the potential of attracting a penal sanction. It requires a higher degree of proof than normal allegations in civil cases.

Hon Ismail J went on to hold that;

This position is fortified by the decision of the Court in Omar Yusuph v. Rama Ahamed Abdulkadir [1987] TLR 169, where it was held as follows: I think it is now established that when the question whether someone has committed a crime is raised in civil proceedings that allegation need be established on a higher degree of probability than that which is required in ordinary civil cases, the logic and rationality of that rule being that the stigma that attaches to an affirmative finding of fraud justifies the imposition of a strict standard of proof.... I take a solid view that the applicant's arguments on this have fallen short of the threshold which would trigger exercise of the Court's power to order revocation of the grant of probate and strip the respondents of the executorship. The contentions are too whimsical to form the basis for granting orders sought. Accordingly, the application is dismissed.

Therefore, based on the cited case above, the Applicants have failed to justify requirements for revocation stipulated under section 49 of PAEA.

Further, I must also emphasize that; once appointed, the administrators are supposed to act in good faith and discharge their obligations in accordance with section 66 of PAEA. This section states as follows;

Upon the grant of any probate or letters of administration the grantee shall take an oath faithfully to administer the estate and account for the same.....

Similarly, pursuant to section 107 of PAEA, they are supposed to exhibit or file an Inventory and Accounts of Estate which will also be inspected by all heirs before the confirmation procedure or approval is done before the court. Throughout the probate proceedings, the court shall be overseeing the conduct of the administrators if it is done in the interest of the heirs or the estate. Any objections relating to Inventory and or Accounts of estate may be raised by heirs at that stage, if any and each objection raised will be determined based on the evidence presented before the court.

In light of the foregoing, this court is satisfied that the Applicant has failed to prove that the letters of administration were obtained through fraud, misrepresentation, or concealment of material facts as required by law since what was presented before the court arose from the consensus of the family or rather originated from the family meeting.

It is trite law that even though family meetings are not a legal requirement, they act as a proof of family consensus and consent on a particular issue related to the estate. They represent the mind of the family or clan on probate matters or matters relating to the estate. See the case of **Abdul Aziz Hussein Ntumiligwa v Yunus Hussein Ntumiligwa, (PC) Probate Appeal No. 2 of 2019, HC, Kigoma.**

According to the record, the Respondents were duly and properly nominated by the family and appointed by the court as administrators, and there exists no legal basis to revoke the grant.

In the case of **Mariam Said Waziri and others versus Rehema Athumani Makonya HCT Temeke OSJC Civil Appeal no. 710 of 2025** the court held that:

although family meetings are not a legal requirement in probate cases but they play a vital role in proving that a person who is petitioning for the letters of administration is the chosen one by the family and all properties of the deceased are listed and heirs have consented for him to petition for letters of administration.

Further in the case of **Masubi Jacob vs. Rosemary Bega William, PC Probate Appeal No. 17 of 2021**, the High

Court of Tanzania at Mwanza District Registry, stated that; -

"A clan meeting is a good practice that is to be cherished as it reduces conflict among the deceased's heirs and saves court's time in prosecuting unnecessary objections that may arise if the clan meeting was not convened."

This position was also reiterated in the following case; **Hadija Said Matika v Awesa Saidi Matika, PC. Civil Appeal No. 2 of 2016, HC, Mtwara,** where Mlacha,J held that;

"...the clan or family will usually sit to discuss the matter and propose someone to be the administrator. He will be sent to court with some minutes. This practice is encouraged because it makes the work of court easy..."

Accordingly, grounds for revocation of the respondents' appointment under section 49(1)(b) of PAEA have not been proved.

Consequently, the Application is dismissed in its entirety. This court cannot under section 49(2) of PAEA revoke the Respondents' appointment at this stage.

The Administrators are thus ordered to proceed with their duties and file an amended Inventory as per the schedule to be ordered by the court. Given the familial nature of the dispute, it is just and equitable that each party bears its own costs.

It is so ordered

The right of appeal is fully explained

DATED at TEMEKE this 31st DAY of DECEMBER 2025



S. Mwaipopo
S. MWAIPOPO
JUDGE
31/12/2024